

**BEFORE THE
FEDERAL COMMUNICATIONS COMMISSION
WASHINGTON, D.C. 20554**

In the Matter of	)	
	)	
In the Matter of	)	
	)	
Facilitating Implementation of Next	)	PS Docket No. 21-479
Generation 911 Services (NG911)	)	
	)	
Massachusetts State 911 Department	)	
Request of April 4, 2025	)	

**REPLY COMMENTS OF INDIGITAL TELECOM TO
VERIZON PETITION FOR WAIVER**

I. Introduction

Communications Venture Corp., d/b/a INdigital Telecom (INdigital), respectfully submits these Reply comments in response to the Federal Communication Commission's (FCC or Commission) Notice¹. We support the goal of accelerating the transition to all-Internet Protocol ("IP") networks and retiring costly, legacy Time Division Multiplexing ("TDM") infrastructure. However, NG911 is not merely an evolutionary upgrade to legacy 911. It is a fundamentally different, IP-based emergency communications architecture designed around standards-based interconnection, geographic diversity, and redundancy across multiple providers and networks. Verizon's request must be viewed in the full context of the current state of the public safety marketplace's IP migration. As a competitive Next Generation 911 service provider and a telecommunications carrier that both competes with and relies upon incumbent local exchange carrier infrastructure, INdigital offers a contemporary real-world perspective on the proposed extension of Phase 1 implementation deadlines.

¹ PUBLIC SAFETY AND HOMELAND SECURITY BUREAU SEEKS COMMENT ON VERIZON PETITION FOR WAIVER OF NEXT GENERATION 911 (NG911) PHASE 1 DEADLINES, PS Docket Nos. 21-479, 25-143, DA 26-404 (rel. April 24, 2026). (Notice)

II. The Requested Waiver is Not Warranted

Under **47 CFR § 9.30** and the framework established in the *NG911 Report and Order*, Originating Service Providers (“OSPs”) are required to comply with Phase 1 requests within six months.² The Commission has made clear that this timeline is adequate.

- A. **Self-Created Delay:** While INdigital acknowledges technical challenges related to Multi-Line Telephone System caller location, any extension must not be analyzed on this parameter alone. Verizon’s failure is a foreseeable, self-created pattern of delay rather than an “extraordinary circumstance” required by the Commission for a waiver.
- B. **OSP Accountability:** The responsibility for meeting deadlines, including the relationships with third-party vendors, rests solely with the OSP, not the state or 911 authorities (who *have met* the deadlines).
- C. **Adequacy of Timeline:** Public safety agencies have already invested the necessary resources to meet the six-month default timeline. As the Joint Texas 9-1-1 Districts note, there is . . . “no credible reason that large OSPs with significantly more resources are unable to do the same.”³

III. Competitive Precedent Risk and Systemic Non-Compliance

Granting this waiver would set a dangerous precedent that other non-compliant operators will cite and exploit to further delay the NG911 transition.

- A. **Pattern of Non-Compliance:** INdigital observes a broader pattern of OSP non-compliance. In addition to Verizon, other providers, such as Brightspeed are in danger of failing to meet Phase 1 SIP deadlines across multiple jurisdictions where INdigital provides service, including Indiana, Alabama, and South Carolina.⁴

² <https://www.ecfr.gov/current/title-47/chapter-I/subchapter-A/part-9/subpart-J/section-9.30>

³ JOINT TEXAS 9-1-1 DISTRICTS’ COMMENTS OPPOSING VERIZON’S PETITION FOR WAIVER OF NG911 PHASE 1 DEADLINES (“Texas 911”), PS Docket Nos. 21-479, at p. 2.

⁴ Analysis based on INdigital’s standing as a competitive NG911 provider and its historical experience with OSP infrastructure transitions and OSP non-compliance patterns.

- B. **Systemic Risk:** If the Commission grants relief for technical issues that should have been resolved during the implementation period, it creates a "roadmap for delay" for other OSPs. The Joint Texas 9-1-1 Districts argue that . . . "public safety answering points . . . should not continue to bear the consequences and costs of delayed OSP compliance."⁵
- C. **Maintaining the Line:** The FCC must enforce compliance deadlines consistently to prevent a fragmented and stalled transition.

IV. The Unfair Shift of Costs to Public Agencies

A primary concern with Verizon's requested delay is the inequitable distribution of financial burdens. INdigital's experience has been that the costs for 911 legacy interconnection points, port, and mileage rates have dramatically increased to the financial gain of the very OSP's who are delaying SIP adoption.

- A. **Cost of Delay:** When OSPs fail to meet deadlines, costs are unfairly shifted to public agencies and/or their vendors. INdigital has experienced cost shifting where incumbent carriers use infrastructure transitions as leverage to impose discriminatory commercial terms or "premium" pricing on legacy circuits.
- B. **Prohibition of "Holdover" Premiums:** Verizon (and other OSPs) must not be permitted to charge 911 authorities or their vendors increased rates or "holdover" premiums for TDM-based transport necessitated solely by their own failures.
- C. **Financial Responsibility:** Consistent with the *NG911 Report and Order*, OSPs must remain responsible for the costs of translating 911 traffic and delivering it to designated NG911 Delivery Points. The South Carolina Revenue and Fiscal Affairs Office in its Comments emphasized that . . . "rules establishing longer timeframes for OSP deployment will only continue to waste valuable state revenues."⁶

⁵ Texas 911, at p. 2.

⁶ COMMENTS OF SOUTH CAROLINA REVENUE AND FISCAL AFFAIRS OFFICE, PS Docket Nos. 21-479, at p. 2.

V. Public Policy Imperatives

The transition to NG911 must not come at the expense of competition, choice, and public safety outcomes. Granting Verizon's request risks "weaponizing" regulatory timelines against public safety entities who have already fulfilled their roles. As Massachusetts State 911 Department states, "Verizon and other OSPs that delayed and did not meet that initial compliance date . . . [force authorities] to continue maintaining the services provided by the third party at our expense."⁷ Protecting the competitive emergency response technology market is essential to ensuring vendor diversity and continued innovation.

VI. Conclusion

INdigital respectfully requests that the Commission deny Verizon's Petition for Waiver. Instead, the Commission should enforce the established six-month timeline and address the underlying circuit cost arbitrage (across all OSP relationships) suffered by state 911 authorities and their vendors up to and including refunds. Enforcing consistency, regulatory compliance, and financial accountability will best safeguard a competitive marketplace and protect the nation's emergency communications infrastructure.

Respectfully submitted,

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⁷ MASSACHUSETTS STATE 911 DEPARTMENT RESPONSE TO AND COMMENTS ON VERIZON PETITION FOR WAIVER, PS Docket Nos. 21-479, at p. 4.